

HOUSE No. 3913

The Commonwealth of Massachusetts

PRESENTED BY:

Steven S. Howitt

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act amending the charter of the town of Seekonk.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>2/25/2025</i>

HOUSE No. 3913

By Representative Howitt of Seekonk, a petition (accompanied by bill, House, No. 3913) of Steven S. Howitt (by vote of the town) that the town of Seekonk be authorized to amend its charter. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act amending the charter of the town of Seekonk.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The charter of the Town of Seekonk, on file in the office of the archivist of
2 the commonwealth, as provided in section 12 of chapter 43B of the General Laws, is hereby
3 amended by striking out in section 2 of article 1 the words “Board of Selectmen” and inserting in
4 place thereof the words:- Select Board.

5 SECTION 2. Section 5 of said article 1 of said charter is hereby amended by striking out
6 in the definition of the word “resolution” the words “Board of Selectmen” and inserting in place
7 thereof the following words:- Select Board.

8 SECTION 3. Section 5 of article 2 of said charter is hereby amended by striking out in
9 the paragraph labeled “special meetings” the words “Board of Selectmen” and inserting in place
10 thereof the following words:- Select Board.

SECTION 4. The first sentence of section 6 of said article 2 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 5. The second sentence of said section 6 of said article 2 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 6. The third sentence of section 7 of said article 2 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 7. Section 3 of article 3 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 8. Subsection (A) of section 1 of article 4 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 9. The first sentence of section 3 of said article 4 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 10. The subheading of article 5 of said charter is hereby amended by striking from the subheading the words “Board of Selectmen” and inserting in place thereof the following words:- Select Board.

SECTION 11. The first sentence of section 1 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 12. The second sentence of said section 1 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 13. The third sentence of said section 1 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 14. The first sentence of section 2 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 15. The second sentence of said section 2 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen” in each instance in which they appear and inserting in place thereof the words:- Select Board.

SECTION 16. The third sentence of said section 2 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 17. The fourth sentence of said section 2 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 18. The first sentence of section 3 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 19. Subsection (A) of said section 3 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 20. The first sentence of subsection (B) of said section 3 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 21. The second sentence of said subsection (B) of said section 3 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 22. The third sentence of said subsection (B) of said section 3 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 23. The first sentence of subsection (C) of said section 3 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 24. Section 4 of said article 5 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 25. The second sentence of section 1 of article 6 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 26. The second sentence of section 2 of said article 6 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 27. The second sentence of the second paragraph of said section 2 of said article 6 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 28. Subsection (A) of said section 2 of said article 6 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 29. Subsection (B) of said section 2 of said article 6 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 30. Subsection (C) of said section 2 of said article 6 of said charter is hereby amended by striking it in its entirety and inserting in place thereof the following new subsection:- The Town Administrator shall attend all sessions of the town meeting and answer all questions concerning warrant articles which are directed to the Town Administrator and which relate to matters under their general supervision.

SECTION 31. Subsection (D) of said section 2 of said article 6 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 32. Subsection (F) of said section 2 of said article 6 of said charter is hereby amended by striking out the words “Board of Selectmen” in each instance in which they appear and inserting in place thereof the words:- Select Board.

SECTION 33. Subsection (G) of said section 2 of said article 6 of said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

SECTION 34. Subsection (H) of said section 2 of said article 6 of said charter is hereby amended by striking it out in its entirety and inserting in place thereof the following new subsection:- The Town Administrator may at any time inquire into the conduct of any office or any town officer, employee, and department or agency under the Town Administrator’s jurisdiction and control.

SECTION 35. Subsection (I) of said section 2 of said article 6 of said charter is hereby amended by striking it out in its entirety and inserting in place thereof the following new subsection:- The Town Administrator shall be responsible for the negotiation of all contracts involving any subject within the Town Administrator’s jurisdiction. All such contracts as may be proposed by the Town Administrator shall be subject to final approval and execution by the Select Board. The Select Board may authorize the Town Administrator to execute any such approved contract on behalf of the town. The Town Administrator shall be included in the negotiations for the School Department to the extent required by statute.

SECTION 36. The second sentence of subsection (J) of said section 2 of said article 6 of said charter is hereby amended by striking it out in its entirety and inserting in place thereof the following new sentence:- The Town Administrator shall, in conjunction with that Board, prepare and maintain a plan establishing the personnel staffing requirements for each town agency or department within the Town Administrator's jurisdiction.

SECTION 37. Subsection (K) of said section 2 of said article 6 of said charter is hereby amended by striking it out in its entirety and inserting in place thereof the following new subsection:- The Town Administrator shall be the Chief Procurement Officer for the town and be responsible for the purchase of all common-use supplies, materials and equipment for the Town, to the extent permitted by state law, excepting books and other educational materials for schools and books and other medial materials for the libraries. The Town Administrator shall approve the award of all contracts for all town departments with the exception of the School Department, subject to the approval of the Select Board.

SECTION 38. Subsection (L) of said section 2 of said article 6 of said charter is hereby amended by striking it out in its entirety and inserting in place thereof the following new subsection:- The Town Administrator shall perform any other duties required of them under this Charter, the Town of Seekonk by-laws, town meeting vote or a vote of the Select Board.

SECTION 39. The first sentence of section 3 of said article 6 of said charter is hereby amended by striking out the words "Board of Selectmen" and inserting in place thereof the words:- Select Board.

134 SECTION 40. The second sentence of said section 3 of said article 6 of said charter is
135 hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof
136 the words:- Select Board.

137 SECTION 41. The first sentence of section 4 of said article 6 of said charter is hereby
138 amended by striking out the words “Board of Selectmen” and inserting in place thereof the
139 words:- Select Board.

140 SECTION 42. The second sentence of said section 4 of said article 6 of said charter is
141 hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof
142 the words:- Select Board.

143 SECTION 43. The third sentence of said section 4 of said article 6 of said charter is
144 hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof
145 the words:- Select Board.

146 SECTION 44. The first sentence of section 5 of said article 6 of said charter is hereby
147 amended by striking out the words “Board of Selectmen” and inserting in place thereof the
148 words:- Select Board.

149 SECTION 45. The first sentence of subsection (A) of said section 5 of said article 6 of
150 said charter is hereby amended by striking out the words “Board of Selectmen” and inserting in
151 place thereof the words:- Select Board.

152 SECTION 46. Subsection (B) of said section 5 of said article 6 of said charter is hereby
153 amended by striking it out in its entirety and inserting in place thereof the following new
154 subsection:- Within five (5) days of receipt of the Board’s preliminary resolution, the Town

155 Administrator may request a public hearing by filing a written request for such a hearing with the
156 Select Board. Thereafter, a public hearing shall be held not more than thirty (30) days after the
157 request is filed, nor sooner than twenty (20) days after the filing of the request. The Town
158 Administrator may file a written statement in justification of their tenure in office with the Select
159 Board, provided any such statement is received by the Board not more than forty-eight (48)
160 hours in advance of the public hearing.

161 SECTION 47. Subsection (C) of said section 5 of said article 6 of said charter is hereby
162 amended by striking it out in its entirety and inserting in place thereof the following new
163 subsection:- The Select Board may adopt a final resolution of removal, which may be made
164 effective immediately, by affirmative vote of the majority of the full Board, at any time after ten
165 (10) days following the date of delivery of a copy of the preliminary resolution to the Town
166 Administrator, if the Town Administrator has not requested a public hearing, or at any time after
167 the public hearing if they have requested one. Within ten (10) days following the vote to make
168 the resolution final, but in no event more than forty-five (45) days following the date of adoption
169 of the preliminary resolution, the Select Board shall, by a majority vote of the full Board, either
170 affirm or deny the final resolution of removal. Failure to affirm a final resolution of removal
171 shall nullify the vote to remove the Town Administrator.

172 SECTION 48. The second sentence of subsection (D) of said section 5 of said article 6 of
173 said charter is hereby amended by striking out the words "Board of Selectmen" in each instance
174 in which they appear and inserting in place thereof the words:- Select Board.

175 SECTION 49. Section 6 of said article 6 of said charter is hereby amended by striking it
176 out in its entirety and inserting in place thereof the following new section:-

177 The Town Administrator shall recommend the appointment of the following board and
178 commission members to the Select Board for approval:

179	BOARD/COMMISSION	NUMBER OF MEMBERS
180	Zoning Board of Appeals	5 and 3 alternate members
181	Board of Health*	5
182	Board of Registrars other than Town Clerk	3
183	Parks and Recreation Committee	5
184	Human Services Council	7
185	Conservation Commission	5
186	Arts Council Commission	5
187	Historical Commission	7
188	Recycling Committee	Min 3, max. 7
189	Capital Improvement Committee	4 members and 3 additional appointed
190	by Moderator	

191 *The Board of Health shall appoint a Health Agent and additional personnel for the
192 board; such employees shall not be current board members.

193 Other committees appointed by the Select Board pursuant to MGL, town by-law or town
194 meeting action.

The Town Administrator shall recommend the appointment of the following town officers to the Select Board for approval: Police Chief, Fire Chief, Superintendent of Public Works, Building Inspector, Zoning Officer, Town Treasurer/Town Collector, Human Services Director, Communications Director, Veteran's Agent, Animal Control Officer, Park and Recreation Director, Emergency Management Director, Sealer of Weights & Measures, Plumbing Inspector, Gas Inspector, Electrical Inspector, Mechanical Inspector, director of Finance and any other positions of the level of department head under the jurisdiction of the Select Board.

The board or commission members and officers of the town appointed under this article shall serve for three (3) year terms, unless otherwise removed as provided in Article Eight, or removed in accordance with the provisions of the town's personnel by-law.

Recommendations made by the Town Administrator shall become effective on the fifteen (15th) day following the day on which notice of the appointment is filed with the Select Board unless the Select Board shall, within said period, by a majority vote of the board, vote to reject any such recommendation or has vote to sooner affirm the appointment.

SECTION 50. The first sentence of section 1 of article 7 of said charter is hereby amended by striking out the words "Board of Selectmen" and inserting in place thereof the words:- Select Board.

SECTION 51. The fourth sentence of section 1 of article 7 of said charter is hereby amended by striking out the words "Board of Selectmen" and inserting in place thereof the words:- Select Board.

216 SECTION 52. The first sentence of section 3 of said article 7 of said charter is hereby
217 amended by striking out the words “Board of Selectmen” and inserting in place thereof the
218 words:- Select Board.

219 SECTION 53. The second sentence of said section 3 of said article 7 of said charter is
220 hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof
221 the words:- Select Board.

222 SECTION 54. The third sentence of said section 3 of said article 7 of said charter is
223 hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof
224 the words:- Select Board.

225 SECTION 55. The second sentence of section 4 of said article 7 of said charter is hereby
226 amended by striking out the words “Board of Selectmen” and inserting in place thereof the
227 words:- Select Board.

228 SECTION 56. The first sentence of section 5 of said article 7 of said charter is hereby
229 amended by striking out the words “Board of Selectmen” and inserting in place thereof the
230 words:- Select Board.

231 SECTION 57. Subsection (G) of said section 5 of said article 7 of said charter is hereby
232 amended by striking out the words “Board of Selectmen” and inserting in place thereof the
233 words:- Select Board.

234 SECTION 58. The first sentence of section 6 of said article 7 of said charter is hereby
235 amended by striking out the words “Board of Selectmen” and inserting in place thereof the
236 words:- Select Board.

237 SECTION 59. The third sentence of said section 6 of said article 7 of said charter is
238 hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof
239 the words:- Select Board.

240 SECTION 60. The first sentence of section 7 of said article 7 of said charter is hereby
241 amended by striking out the words “Board of Selectmen” and inserting in place thereof the
242 words:- Select Board.

243 SECTION 61. The second sentence of section 1 of article 8 of said charter is hereby
244 amended by striking out the words “Board of Selectmen” and inserting in place thereof the
245 words:- Select Board.

246 SECTION 62. Section 5 of said article 8 of said charter is hereby amended by striking out
247 the words “Board of Selectmen” and inserting in place thereof the words:- Select Board.

248 SECTION 63. Section 10 of said article 8 of said charter is hereby amended by striking it
249 in its entirety and inserting in place thereof the following new section:- Any member of an
250 appointive board or commission of the town shall be deemed to have vacated their office upon
251 being absent from five (5) consecutive, regularly scheduled meetings.

252 SECTION 64. The first sentence of section 11 of said article 8 of said charter is hereby
253 amended by striking out the words “Board of Selectmen” in each instance in which they appear
254 and inserting in place thereof the words:- Select Board.

255 SECTION 65. The fourth sentence of said section 11 of said article 8 of said charter is
256 hereby amended by striking out the words “Board of Selectmen” and inserting in place thereof
257 the words:- Select Board.

258 SECTION 66. The second sentence of section 2 of article 9 of said charter is hereby
259 amended by striking it out in its entirety and inserting in place thereof the following new
260 sentence:- Except as may otherwise be provided by this charter, no regular full-time or part-time
261 employee of the town shall forfeit their pay grade or longevity as a result of the adoption of this
262 charter.

263 SECTION 67. This act shall take effect upon its passage.